

[doc. web n. 9960920]

Provision of October 26, 2023

Register of provisions

n. 502 of October 26, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Attorney
Guido Scorza, member, and Cons. Fabio Mattei
secretary general;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018, containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the complaint filed by Mr. XX pursuant to Article 77 of the Regulation, in which he complained about the installation of a video surveillance system at Condominium XX in XX, in the absence of suitable grounds for legality;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the secretary general pursuant to Article 15 of the Guarantor's regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. The complaint, the preliminary investigation, and the initiation of the procedure.

With the complaint submitted to this Authority on 01/29/2021, regularized on 05/28/2021, Mr. XX complained of unlawful processing of personal data by Mr. XX, the pro tempore administrator of the Condominium on Via della XX, located in XX, who had installed a video surveillance system in the absence of a resolution by the assembly.

The Office, therefore, made a request for information to the administrator of the Condominium, pursuant to Article 157 of the Code, in order to acquire useful elements for evaluation. This request, dated 08/30/2021 and sent to the administrator's email address, went unanswered.

Therefore, the Privacy and Technological Fraud Protection Unit of the Guardia di Finanza was delegated to notify the administrator of the initiation of the sanctioning procedure for the violation of Article 157 of the Code (protocol No. 53712 of 10/26/2021) as well as to acquire the information already subject to the previous note.

As a result of the inspection carried out on 11/17/2021, it was found that a video surveillance system consisting of two cameras was present at the Condominium, positioned outside the building, active and functioning, with a field of view extending to the parking area and the access gate, with partial visibility of the public road. Furthermore, it was found that this system had been installed in November 2020 in the absence of a resolution from the condominium assembly.

The condominiums had been notified of the installation of the cameras via an email dated 11/06/2020. The images were viewable on the administrator's mobile phone by entering a code and password. It was also verified that there were signs bearing the information referred to in Article 13 of the Regulation, although lacking the indication of the data controller.

With a subsequent note dated 12/02/2021, supplementing what was represented during the inspection, the administrator, through his lawyer, stated, first of all, that he had not responded to the

request for information made by the Guarantor pursuant to Article 157 of the Code, as it had not been delivered to his email inbox.

Regarding the merits of the case, the administrator highlighted that all the condominiums agreed on the need to install a video surveillance system to address the ongoing damage occurring in the area in front of the Condominium, and that the system in question had been installed urgently, reserving the right to adopt the condominium resolution at the first available opportunity.

The Office, based on the findings made in the aforementioned report as well as the subsequent integrations received, notified Mr. XX, identified as the data controller, with a note dated 03/04/2022 (protocol No. 13810) of the initiation of the procedure for the adoption of the measures referred to in Articles 58, paragraph 2, and 83 of the Regulation, in accordance with the provisions of Article 166, paragraph 5, of the Code, in relation to the violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation.

The party, in a note dated 03/15/2022, limited himself to recalling the observations already presented during the procedure.

2. The legal framework of the processing carried out.

Given that the use of video surveillance systems constitutes processing of personal data pursuant to Article 4, paragraph 1, no. 2, of the Regulation, it is noted that such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, the principle of lawfulness and transparency (Article 5, paragraph 1, letter a) and the principle of purpose limitation (Article 5, paragraph 2, letter b).

In this regard, it is necessary to refer to the Guidelines No. 3/2019 on the processing of personal data through video devices, adopted by the European Data Protection Board on 01/29/2020, in

****Based on which, before proceeding with the processing of personal data through video surveillance systems, it is necessary that the purposes of the processing are specified in detail, which must be documented in writing and specified for each camera in use. Furthermore, the interested parties must always be informed that they are about to access a video-surveilled area as well as the purposes of the processing itself, pursuant to Article 13 of the Regulation (par. 3, n. 15 Guidelines cited). For this purpose, therefore, the data controller must prepare suitable informational signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this sense also the FAQs on video surveillance published on the Authority's website) so that the interested parties are made "aware of the fact that a video surveillance system is in operation."**

Similarly, the aforementioned Guidelines clarify that "the most important information must be indicated [by the controller] on the warning sign itself (first level) while additional mandatory details can be provided by other means (second level)" (par. 7, n. 111). The Guidelines also provide that "Such information may be provided in combination with an icon to give, in a clearly visible, intelligible, and legibly clear manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information must adapt to the various locations." The information should be positioned in such a way as to allow the interested party to easily recognize the circumstances of the surveillance before entering the surveilled area (approximately at eye level) "to allow the interested party to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary" (par. 7.1.1, n. 113).

With reference to the conditions for the lawfulness of the processing, the Guidelines on video surveillance provide that "In principle, any legal basis under Article 6, paragraph 1, can provide a legal basis for the processing of video surveillance data (...). However, in practice, the provisions most likely to be used are: Article 6, paragraph 1, letter f) (legitimate interest); Article 6, paragraph 1, letter e) (necessity for the performance of a task carried out in the public interest)" (par. 3). In particular, "video surveillance is lawful if it is necessary to achieve the purpose of a legitimate interest pursued by a data controller or by a third party, unless such interests are overridden by the interests or fundamental rights and freedoms of the data subject (Article 6, paragraph 1, letter f)."

Lastly, it should be noted that the installation of video surveillance systems in condominium settings has been regulated by Article 1122-ter of the Civil Code (introduced by the condominium reform law

with Law No. 220 of December 11, 2012) which provides that "Resolutions concerning the installation on the common parts of the building aimed at allowing video surveillance on them are approved by the assembly with the majority referred to in the second paragraph of Article 1136" (i.e., a number of votes representing the majority of those present and at least half of the value of the building). The condominium resolution represents the instrument that allows the administrator to execute the decisions made by the condominium members during the assembly (Article 1130, 1st paragraph, point 1, Civil Code), by virtue of the mandate received. The administrator, as a mandatary, is indeed subject to the general rules set forth by the Civil Code for this contractual type, to which Article 1129, paragraph 15, refers explicitly (norm titled "Appointment, revocation, and obligations of the administrator").

From another perspective, it is observed that the condominium resolution represents, in this context, the necessary prerequisite for the lawfulness of the processing carried out through video surveillance in the condominium setting. In fact, through this act, the condominium members contribute to defining the main characteristics of the processing, identifying the methods and purposes of the processing itself, the retention periods of the recorded images, and the identification of the subjects authorized to view the images. The Condominium as a whole, therefore, assumes the qualification of data controller, as indicated by the definition provided in Article 4, n. 7, of the Regulation.

3. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.

It is noted that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Authority, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Authority and interruption of the execution of the tasks or the exercise of the powers of the Authority." Based on the elements acquired during the investigative activity (referred to in the previous paragraph 1) as well as the subsequent evaluations of this Department, it has been established that the following is true.

Regarding the violation related to the failure to respond to the request for information made during the investigation by the Authority, pursuant to Article 157 of the Code, taking into account the responses provided by the party during the procedure and, in particular, the circumstance that the note from the Office, dated...**

30/08/2021 and sent to the personal email address of the administrator, it has not been received by the recipient, in the absence of contrary evidence, since the communication was sent to a regular email address (not certified). Therefore, the procedure initiated with the act of 26/10/2021 prot. n. 53712 is ordered to be archived, pursuant to Article 11, paragraph 1, letter b) and Article 14 of the regulation of the Guarantor no. 1/2019 of April 4, 2019.

With reference instead to the processing carried out through the video surveillance system, it is noted that, from the overall examination of the documentation acquired during the procedure, it emerged that the installation of the cameras at the Condominium was directly ordered by the administrator (Mr. XX), in the absence of the condominium resolution provided for by Article 1122-ter of the Civil Code, as he limited himself, during the assembly on 12/12/2019, "to invite the condominium owners to produce estimates for the installation of cameras suitable for the protection of the condominium's external space" (attachment 2 to the minutes of operations carried out).

The absence of a condominium resolution, in relation to the specific issue, has resulted in the administrator acting outside the duties assigned to him by the regulations (Article 1130 of the Civil Code, in fact, when listing the duties of the administrator, identifies, at the first point, the execution of the assembly resolutions, recognizing him a certain autonomy only concerning ordinary management, the regulation of the use of common things, and the provision of services in the common interest).

Moreover, it appears from the documents that the condominium administrator took care of installing the cameras, also defining their field of view, and equipped himself with an application to view the images active on his smartphone, after entering authentication credentials known only to him.

These circumstances, examined as a whole, assume particular relevance for the correct identification of the data controller and the related attribution of responsibilities arising from non-compliance with the regulations on the protection of personal data, contributing to qualify, in this case, the administrator (and not the Condominium) as the data controller.

That being said, it follows that the processing of the personal data in question was carried out by the administrator in the absence of a suitable legal basis, pursuant to Article 6 of the Regulation.

If, in fact, the pursuit of a legitimate interest of the controller to protect property from theft or vandalism could be pursued by the Condominium through the installation of the video surveillance system in light of the necessity of the measure, related to a situation of real risk and based on an adequate balancing with the rights and fundamental freedoms of the data subjects, it is observed instead that the processing carried out by the administrator, on the contrary, is not supported by any of these circumstances.

In fact, there is no legitimate interest, effective and current, connected to a situation of real difficulty, that allows him to lawfully carry out the processing through the cameras.

That being said, it is noted that the processing in question is unlawful because it was carried out in violation of the general principles of lawfulness, fairness, and transparency (Article 5, paragraph 1, letter a) of the Regulation) towards all data subjects (condominium owners and non-owners) as well as in the absence of a suitable legal basis pursuant to Article 6 of the Regulation.

Regarding the further violations, it is noted that the statements made by the party during the procedure do not allow overcoming the objections notified by the Office with the act of initiation of the sanctioning procedure dated 04/03/2022 (prot. n. 13810) and are insufficient to allow its archiving, for the reasons set out below.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, Regulation.

The processing of personal data carried out by the administrator through the video surveillance system, with respect to which a procedure was initiated with communication no. 13810 of 4/3/2022, is therefore unlawful, in the terms outlined above, in relation to Articles 5, paragraph 1, letter a) and 6 of the Regulation.

The violation, ascertained in the terms set out in the reasoning, cannot be considered "minor", taking into account the nature, severity, and duration of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (cons. 148 of the Regulation).

Therefore, in light of the corrective powers attributed by Article 58, paragraph 2 of the Regulation, in light of the specific case and in the absence of communications subsequent to the initiation of the procedure from which the adoption of the condominium resolution required by Article 1122-ter concerning the installation on the common parts of the building of systems aimed at allowing video surveillance on them can be inferred, the prohibition of processing is ordered (Article 58, paragraph 2, letter f), Regulation).

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the...

****Power to Impose an Administrative Monetary Penalty****

provided for by Art. 83, par. 5, of the Regulation, through the adoption of an injunction order (Art. 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the party through the video surveillance system, in violation of the general principles set out in Art. 5, par. 1, lett. a) and in the absence of suitable lawful grounds pursuant to Art. 6 of the Regulation.

It is deemed necessary to apply paragraph 3 of Art. 83 of the Regulation, which states that "If, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative monetary penalty does not exceed the amount specified for the most serious violation," the total amount of the penalty is calculated so as not to exceed the maximum amount provided for by the same Art. 83, par. 5.

With reference to the elements listed in Art. 83, par. 2, of the Regulation for the purpose of applying the administrative monetary penalty and its quantification, considering that the penalty must be "effective, proportionate, and dissuasive in each individual case" (Art. 83, par. 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account: with regard to the nature, gravity, and duration of the violation, the conduct of the condominium administrator has been considered, who, in the absence of the requested assembly resolution, initiated the processing of data through a video surveillance system. It is noted, as an aggravating circumstance of the conduct, that such compliance is expressly provided for by the civil code in Art. 1122-ter, in the section dedicated to the rules for the management of condominiums;

it is also noted that, although the notification of violation expressly requested to communicate the measures taken to make the processing compliant with the Regulation, particularly with reference to the adoption of a specific condominium resolution, as a condition of lawfulness of the processing in question, the party did not send any document in this regard, nor communicated the reasons that may have led to such non-compliance;

the absence of specific previous violations related to the regulations on personal data protection.

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary penalty at €1,000.00 (one thousand) for the violation of Art. 5, par. 1, lett. a) and Art. 6 of the Regulation.

In this context, also considering the type of violation ascertained, it is deemed that, pursuant to Art. 166, par. 7, of the Code and Art. 16, par. 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed.

It is finally noted that the conditions set forth in Art. 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Garante, are met.

****ALL OF THE ABOVE CONSIDERED, THE GARANTE****

declares, pursuant to Art. 57, par. 1, lett. f) and Art. 83 of the Regulation, the unlawfulness of the processing carried out by Mr. XX, residing in XX, XX, Tax Code XX, through the use of the video surveillance system installed at the Condominium XX in XX, in the terms stated in the reasoning, for the violation of Art. 5, par. 1, lett. a) and Art. 6 of the Regulation;

****ORDERS****

pursuant to Art. 58, par. 2, lett. f) of the Regulation, the prohibition of processing through the video surveillance system carried out by Mr. XX in the terms indicated in the reasoning, without prejudice to the possibility that the same processing may be carried out by the condominium, following the adoption of the condominium resolution required by Art. 1122-ter of the Civil Code;

****COMMANDS****

Mr. XX to pay the sum of €1,000.00 (one thousand) as an administrative monetary penalty for the violation of Art. 5, par. 1, lett. a) and Art. 6 of the Regulation, as indicated in the reasoning;

****ORDERS****

to pay the sum of €1,000.00 (one thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Art. 27 of Law No. 689/1981. It is represented that pursuant to Art. 166, par. 8 of the Code, the possibility for the offender to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed penalty within the deadline set forth in Art. 10, par. 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below, remains reserved.

****ORDERS****

pursuant to Art. 166, par. 7, of the Code and Art. 16, par. 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions set forth in Art. 17 of Regulation No. 1/2019 are met.

It is also ordered that the initiatives undertaken to implement the provisions of this provision be communicated and to provide adequately documented feedback pursuant to Art. 157 of the Code, within 30 days from the date of notification of this provision; any failure to respond may

****Subject: Application of Administrative Sanction****

The application of the administrative sanction provided for by Article 83, paragraph 5, letter e) of the Regulation is to be enforced.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, October 26, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei